

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:
SUMMONS

-----X
DAVONTE DAVIS,

Plaintiff,

Plaintiffs designate
Bronx County as the
Place of trial.

against

The basis of venue is:
Plaintiffs' Residence

THE CITY OF NEW YORK,, P.O. BRIAN LITTLE
SHIELD 7155,DETECTIVE DALE PERSAUD SHIELD
5875, and P.O. JOHN DOES #1-3

Plaintiffs reside at:

Defendants,

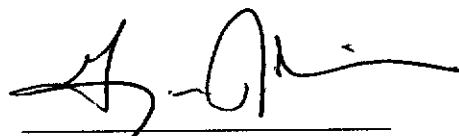
County of Bronx

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To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: January 23, 2015
New York, NY



GARY N. RAWLINS, ESQ.
THE RAWLINS LAW FIRM PLLC
Attorney for Plaintiff
DAVONTE DAVIS
80 Broad Street 5th Floor
New York, NY 10004
Tel :(212) 926-0050
Fax (212) 926-0059

BRONX COUNTY
COUNTY CLERK
15 JAN 29 PM 2:46

RECEIVED

TO:

Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

P.O. BRIAN LITTLE SHIELD 7155
357 West 35th Street
New York, NY 10001

P.O. DALE PERDAUD SHIELD 5875
306 West 54th Street
New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVONTE DAVIS,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, NEW YORK
POLICE DEPARTMENT, P.O. BRIAN LITTLE SHIELD
7155, DETECTIVE DALE PERSAUD SHIELD 5875,
and P.O. JOHN DOES #1-3

Defendants.

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Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.
2. The Plaintiff, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.

3. At all times mentioned herein, Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** were and still are residents of the County of Bronx, State of New York.

4. At all times herein mentioned, Defendant **CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendants **NYC** and Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendants **NYC** are vicariously liable for the acts of Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3**.

7. At all times herein mentioned, Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** were and still are police officers employed by the New York City Police Department.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

8. Plaintiff **DAVONTE DAVIS** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff **DAVONTE DAVIS** sues all Defendants in their capacities.

10. On or about May 24, 2013, plaintiff was arrested for an alleged theft at the Hudson Hotel in Manhattan where he was staying. NYPD had video evidence of the crime showing a man that clearly was not the plaintiff. He was jailed for 4 days.

11. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

12. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **DAVONTE DAVIS**.

13. Prior to May 24, 2013 the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Davis' rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City or New York to inadequately supervise and train it's police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrest as possible without concern for the validity of those arrests. The respondents agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

AS AND FOR A SECOND CAUSE OF ACTION
FOR EXCESSIVE FORCE PURSUANT TO 1983

14. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

15. On or about May 24, 2013, Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** used excessive force in apprehending Plaintiff and falsely arrested Mr. Bannister without probable cause.

16. Solely as a result of Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** negligence, Plaintiff **DAVONTE DAVIS** was caused to suffer severe and serious personal injuries to mind and body, further, that Plaintiff was subjected to great physical pain, mental anguish, embarrassment, extreme shock and nervousness.

17. The amount of force used to apprehend Plaintiff was unjustified.

18. By reason of the foregoing, Davis' civil rights were violated.

19. Plaintiff **DAVONTE DAVIS** was severely injured and damage which sustained him to suffer from severe nervous shock and mental anguish, great physical pain and emotionally damaged some of which injuries are believed to be permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; Plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this accident, all to Plaintiff's great damage.

20. Due to Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** negligence, Plaintiff **DAVONTE DAVIS** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT
IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS**

21. Plaintiff **DAVONTE DAVIS** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

22. Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** caused Plaintiff to apprehend and/or fear unfriendly contact.

23. A reasonable person in the same circumstances as Plaintiff would have apprehended and/ or feared unfriendly contact.

24. Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** assaulted Plaintiff in violation of his civil rights.

25. Due to the Defendants' assault, Plaintiff **DAVONTE DAVIS** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND SUPERVISION

26. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

27. Prior to on or about May 24, 2013 Defendants **NYC and NYPD** knew or should have known Defendants **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** be unruly and to verbally threaten and to harass other human beings.

28. That defendants **NYC and NYPD** negligently hired and trained **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** negligently failed to supervise or discharge him from their employ, thereby causing and contributing to the above stated incident.

29. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR EGREGIOUS CONDUCT

30. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

31. Plaintiffs repeat and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

32. The acts of NYC, NYPD, and P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3 complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

33. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

34. That as a result of the foregoing, Plaintiff DAVONTE DAVIS seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS

35. Plaintiff **DAVONTE DAVIS** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

36. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **DAVONTE DAVIS** by defendant **OFFICERS**.

37. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **DAVONTE DAVIS** rights to be free from unreasonable searches and seizures and excessive use of force.

38. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **P.O. BRIAN LITTLE SHIELD 7155, DETECTIVE DALE PERSAUD SHIELD 5875, and P.O. JOHN DOES #1-3** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

39. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

40. Plaintiff **DAVONTE DAVIS** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein

41. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **DAVONTE DAVIS** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

42. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **DAVONTE DAVIS** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

43. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **DAVONTE DAVIS** and injury to his good name and reputation.

44. Said harm did in fact occur in this case, in that Plaintiff **DAVONTE DAVIS** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

45. By reason of the foregoing, Plaintiff **DAVONTE DAVIS** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

46. Plaintiff **DAVONTE DAVIS** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

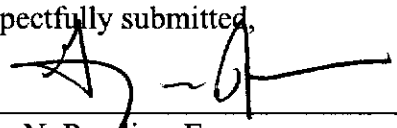
47. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

48. Plaintiff **DAVONTE DAVIS** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: January 21, 2015

Respectfully submitted,



Gary N. Rawlins, Esq.
Rawlins Firm, PLLC
Attorneys for Plaintiff

DAVONTE DAVIS

80 Broad Street, 5th Floor

New York, NY 10004

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TO:

Zachary Carter

New York City Law Department

100 Church Street

New York, New York 10007

P.O. BRIAN LITTLE SHIELD 7155

357 West 35th Street

New York, NY 10001

P.O. DALE PERDAUD SHIELD 5875

306 West 54th Street

New York, NY 10019

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

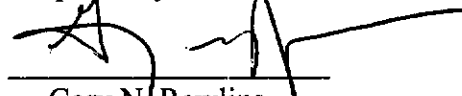
That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: New York, New York
January 23, 2015

Respectfully Submitted,



Gary N. Rawlins